

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

Timothy Revell Roberson

Case Number: 25-00626

vs.

Respondent

Merrill Lynch, Pierce, Fenner & Smith, Incorporated

Hearing Site: Nashville, Tennessee

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Timothy Revell Roberson (“Claimant”): Alex Padla, Esq. and Dochter Kennedy, Esq., AdvisorLaw, Broomfield, Colorado.

For Respondent Merrill Lynch, Pierce, Fenner & Smith Incorporated (“Respondent”): Shruti Jaishankar, Esq., Maynard Nexsen, PC, Birmingham, Alabama.

CASE INFORMATION

Statement of Claim filed on or about: March 26, 2025.

Claimant signed the Submission Agreement: March 26, 2024.

Statement of Answer filed on or about: June 10, 2025.

Respondent signed the Submission Agreement: June 10, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent took no position on Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 2200567) requested expungement of all references to Occurrence Numbers 1034086, 1039447, 1937324, and 2031870 from the CRD registration records and any and all other relief that the Panel deemed just and equitable.

In the Statement of Answer, Respondent did not delineate any specific relief request.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On April 2, 2025, and April 8, 2025, Claimant advised that some of the customers in Occurrence Number 1034086, and the customers in Occurrence Numbers 1039447, 1937324 and 2031870 ("Living Customer A" "Customer B" "Customer C" and "Customers D" respectively) (collectively the "Customers") were served with a copy of the Statement of Claim within 10 days of filing the Statement of Claim and provided proof of service.

On the same date, Claimant filed a copy of the obituaries and Death Records for the remaining customers in Occurrence Number 1034086 ("Deceased Customers A"). On April 8, 2025, Claimant filed an Affidavit stating that he was unable to serve the Deceased Customers A with the Statement of Claim and notice of the date and time of the expungement hearing because they were deceased.

On April 8, 2025, Customer C submitted a written statement.

On June 11, 2025, June 12, 2025, and June 17, 2025, Claimant advised that the Customers were served with a copy of the Statement of Answer within 10 days of its filing and provided proof of service.

On June 17, 2025, Claimant filed an Affidavit stating that he was unable to serve Deceased Customers A with the Statement of Answer and notice of the date and time of the expungement hearing because they were deceased.

On June 23, 2025, Customer C submitted an additional written statement.

The Panel conducted a recorded hearing by videoconference on October 21, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent appeared at the expungement hearing and as stated in the Statement of Answer, took no position on the request for expungement.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrences in the CRD.

The Panel did not review the settlement documentation related to Occurrence Number 1034086. The Panel noted the settlement occurred over twenty years ago, and the amount of the settlement was nominal compared to the amount of the claim. The Panel considered the amount of payment made to any party to the settlement and considered other relevant terms and conditions of the settlement. The Panel noted that Claimant did not contribute to the settlement amount.

The Panel noted that the disputes related to Occurrence Numbers 1039447 and 2031870 were not settled. Therefore, there was no settlement documentation to review.

The Panel relied upon the following documentary or other evidence: convincing testimony from Claimant as well as exhibits provided by Claimant's counsel, specifically in the Statement of Claim, the BrokerCheck® Report and post-hearing brief.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Numbers 1034086, 1039447 and 2031870 from registration records maintained by the CRD for Claimant Timothy Revell Roberson (CRD Number 2200567) with the understanding that, pursuant to Rule 2080, Claimant Timothy Revell Roberson must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Occurrence Number 1034086

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative finding of fact:

The registered person was not involved in the alleged investment-related sales practice violation, forgery, theft, misappropriation, or conversion of funds.

The Panel has made the above finding based on the following reasons:

Claimant was not involved in a practice violation. The customer complaint was filed because of actions of Claimant's investment group "partner." Claimant had no contact with the customers nor did he select any investments for the customers.

Occurrence Numbers 1039447 and 2031870

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative finding of fact:

The claim, allegation, or information is false.

The Panel has made the above finding based on the following reasons:

Occurrence Number 1039447

Customer B's claim was false. It was based upon an allegation that Customer B's account with Claimant was concentrated in tech stocks. Customer B specifically requested concentration in tech stocks. Claimant researched tech stocks recommended by Respondent, provided advice on the advantages and risks associated with tech stocks, and was not responsible for the subsequent market wide decline in the tech stocks sector. After Respondent denied Customer B's complaint, it was not submitted to arbitration.

Occurrence Number 2031870

Customers D's claim was false. The claim was based on alleged "misrepresentations" made by Claimant with regard to an investment that constituted five percent of Customers D's portfolio. Claimant fully and accurately represented the investment to Customers D. When the value of the investment dropped, Customers D elected to retain the investment in the hope that it would recover in value. After Respondent denied the claim, Customers D never pursued the claim in arbitration.

2. Claimant's request for expungement of Occurrence Number 1937324 from registration records maintained by the CRD is denied with prejudice. The Panel's decision was unanimous.
3. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$	2,600.00
Member Process Fee	= \$	5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$	1,725.00
Pre-Hearing Conference: June 25, 2025	1 session	
One (1) hearing session on expungement request @ \$1,725.00/session	= \$	1,725.00
Hearing: October 21, 2025	1 session	
Total Hearing Session Fees		= \$ 3,450.00

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Steven R. Rolnick	-	Public Arbitrator, Presiding Chairperson
Nicholas John Taldone	-	Public Arbitrator
Mary C. Davis	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Steven R. Rolnick

Steven R. Rolnick
Public Arbitrator, Presiding Chairperson

12/24/2025

Signature Date

Nicholas John Taldone

Nicholas John Taldone
Public Arbitrator

12/23/2025

Signature Date

Mary C. Davis

Mary C. Davis
Public Arbitrator

12/23/2025

Signature Date

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December 24, 2025

Date of Service (For FINRA Dispute Resolution Services use only)